

Praveen Kumar v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 10 April 2024 · 2024:AHC:62735-DB · WRIT - C No. 8363 of 2024 · **Liberty to apply for a fresh connection; disconnection order not adjudicated.**

HEADNOTE

Writ against permanent disconnection of a tube-well connection disposed of, on the parties' agreement, with liberty to apply for a fresh connection under the Electricity Supply Code, 2005, to be considered on merits preferably within three weeks. Correctness of the disconnection order was left undecided.

FACTUAL SUMMARY

Praveen Kumar's tube-well connection had been granted in his father's name. The distribution licensee permanently disconnected it on 6 February 2023. He filed a writ for reconnection, the disconnection having followed a succession dispute with his brothers. On 14 March 2024 a Division Bench doubted that the family dispute alone could justify permanent disconnection, and indicated that supply might continue on an indemnity bond if the bills were paid. The licensee took time for instructions, and the writ was listed again on 10 April 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

fresh connection after permanent disconnection

HOLDING

Where a writ challenges an order of permanent disconnection and both sides agree that the consumer may seek a fresh connection under the Electricity Supply Code, 2005, the petition may be disposed of with liberty to apply. The application is to be considered by the licensee on its own merits, here in view of paragraph 18 of the writ petition, preferably within three weeks of filing a certified copy of the order. The Court makes no order on whether the permanent disconnection itself was lawful. ¶ 4-5

PRINCIPLE TAGS

liberty-to-apply-fresh-connection After arguing a challenge to permanent disconnection of a tube-well connection, the parties agreed the consumer would apply afresh under the Electricity Supply Code, 2005. The writ was disposed of on that liberty, the application to be considered on merits within three weeks, without any decision on the disconnection order. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PERMANENT-DISCONNECTION ORDER DATED 6 FEBRUARY 2023

The Court recorded that no orders were required on that issue once the parties agreed the petitioner would apply for a fresh connection. ¶ 4-5

NOT DECIDED — WHETHER THE FRESH TUBE-WELL CONNECTION MUST BE GRANTED

Left to the licensee to consider the application on its own merits in view of paragraph 18 of the petition. ¶ 5